

limitation, ***negligence in rendering, or not rendering, medical or emergency aid***) and for any and all loss of life, bodily injury..." (emphasis added.)

Plaintiff's claims are based on the allegation that Defendants "breached their respective duty of care owed to [decedent] by failing to have an EMT and an AED available for use on [decedent]" (Comp. ¶20). Plaintiff alleges decedent died as a result of Defendants' negligence while playing an adult softball game at Big League Dreams Chino Hills. (Comp. ¶12.) Thus, Plaintiff's claims are based on an act of negligence by Defendants related to use of the Big League Dreams facilities, which is directly covered by the Release. Defendants have met their initial burden to show that the Release bars Plaintiff's claim.

As the motion is unopposed, Plaintiff has not provided any evidence of triable issues of material fact.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402696	SALAZAR VS COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: The Court continues this matter to Friday, July 17, 2026 at 1:30 p.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502763	SABREE VS CREEK HOMES, LLC	DEFENDANT CREEK HOMES, LLC DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: The Court GRANTS Creek's requests for judicial notice of Exhibits 1 through 3. The Court OVERRULES the demurrers in full. Defendants shall file an Answer in 30 days.

Factual / Procedural Context

This is a habitability dispute between tenant and landlord. In December 2021, Plaintiff Aaliyah Sabree ("Plaintiff") became a tenant of a home located at 11026 Evergreen Loop, Corona, CA ("Property"), which is legally owned by Defendant Creek Homes, LLC ("Creek") and managed by Defendant Sudman Enterprises, Inc. dba Management One ("Management One").

Plaintiff alleges that the Property suffered ongoing water intrusion from roof leaks, plumbing leaks, HVAC leaks, and exterior sources that allowed water to migrate into the home. The Property experienced improper ventilation, strong musty and offensive odors, and dampness in habitable rooms. The water intrusion resulted in loss of use of the home and severe microbial contamination, including amplification of bacteria, mold growth, and dust mites, rendering the property uninhabitable and causing Plaintiff to suffer allergic, irritant, and infectious conditions, including asthma, allergic rhinitis, and chronic sinusitis. As a result, Plaintiff alleges she was forced to move out of the Property in July 2023.

On September 8, 2025, Plaintiff filed the operative First Amended Complaint (“FAC”) against Creek and Management One (collectively, “Defendants”), asserting causes of action for (1) negligence; (2) breach of warranty of habitability (against Creek only); and (3) private nuisance.

Creek demurs to the FAC on the grounds that all causes of action alleged therein do not state facts sufficient to constitute a cause of action against it. Specifically, Creek argues that Plaintiff’s claims were all previously litigated in an unlawful detainer action (“UD Action”) that Creek brought against Plaintiff’s mother, Shelley Flowers (“Shelley”), who was the lessee of the Property, and Plaintiff’s brother, Londonn Sabree (“Londonn”). Creek contends that it entered into a settlement agreement and release (“Agreement”) with Shelley and Landon, in which Shelley and her heirs, successors, and assigns released all known claims for mold-related injuries against Creek. Accordingly, Creek argues that Plaintiff is bound to the Agreement, and as such, her claims for mold-related injuries are barred. Management One essentially joins the arguments made by Creek in support of its demurrer.

In opposition, Plaintiff argues that she alleged sufficient facts to state valid causes of action against Defendants, and that the Agreement is not binding on her legal right to file these claims in this action because Plaintiff was not a party to it. Plaintiff argues that this Court has jurisdiction over the instant matter, and thus, the demurrer should be overruled.

In reply, Defendants argue that, although Plaintiff was not a signatory to the Agreement, Plaintiff is bound by the release as an intended third-party beneficiary and “heir” under the Agreement. Defendants contend that Plaintiff falls within the express class of released persons and that contractual intent must be determined from the writing alone under Civ. Code §§ 1639 and 1641, applying the rule against surplusage. Defendants further assert that Plaintiff’s claims are barred by the primary rights doctrine because they arise from the same injury previously settled, and that Plaintiff cannot accept the settlement’s benefits while repudiating its burdens. Defendants therefore request that the Court sustain the demurrer without leave to amend.

On April 7, 2026, the Court held a hearing on the instant demurrers. Plaintiff’s counsel informed the Court that after he received Management One’s reply, he realized that the Agreement was signed by an employee of Management One who was not employed by Creek. Plaintiff argued that under C.C.P. § 664.6, only a party or its attorney can sign a settlement agreement. Accordingly, Plaintiff alleges that the underlying Agreement is void and unenforceable, and as such, does not bar Plaintiff from bringing this action against Creek. In light of this argument, the Court requested that the parties submit supplemental briefing as to the applicability of C.C.P. § 664.6 to the pending demurrers.

In her supplemental brief, Plaintiff argues that C.C.P. § 664.6 only authorizes a party or attorney who represents the party to sign a settlement agreement. Plaintiff

contends that the Agreement was executed by a Management One employee, who Plaintiff alleges was a non-party and non-attorney without the authority to sign the Agreement or bind Defendant to its terms.

In its supplemental opposition, Creek argues that C.C.P. § 664.6 does not apply to its demurrer, as Creek is not invoking the statute's summary enforcement mechanism. Rather, Creek contends that it is asserting a contractual release clause, under general contract law, as a binding affirmative defense to bar Plaintiff's tort claims. Creek then argues that agreements that are not valid under § 664.6 are still enforceable as contracts under the terms of general contract law, as noted in *Kilpatrick v. Beebe* (1990) 219 Cal.App.3d 1527 and *Nicholson v. Barab* (1991) 233 Cal.App.3d 1671. Creek argues that the Agreement is a valid and binding contract because it was signed by an employee of Management One, Creek's property manager, who was delegated the authority to settle, compromise, and release actions and suits by the Property Management Agreement executed between Defendants.

Management One's supplemental opposition essentially reiterates Creek's arguments.

In her supplemental reply, Plaintiff acknowledges that Defendants are not trying to enforce the Agreement under C.C.P. § 664.6, but contends that the Agreement is not valid or enforceable because it was never properly executed due to § 664.6's signature requirements. Plaintiff then attempts to re-argue that the Agreement is not binding upon her because she never consented to the Agreement.

Request for Judicial Notice

Creek seeks judicial notice of documents filed in the unlawful detainer action that it brought against Shelley Flowers, Londonn Sabree, and Does 1 to 10, *Creek Homes LLC v. Flowers, et al.*, Case No. UDCO2301436 ("UD Action"); specifically, the Complaint, Settlement Agreement ("Agreement"), and Register of Actions. (Request for Judicial Notice ["RJN"], Exhs. 1-3, respectively). The Court GRANTS the Request for Judicial Notice per Evid. Code § 452(d). The existence and contents of the Agreement and Release are proper subjects for judicial notice. (*See Chacon v. Union Pacific Railroad* (2020) 56 Cal.App.5th 565, 572-573 ["The existence and contents of a written agreement may be the proper subject of judicial notice if there is no factual dispute that the document is genuine and accurate... Taking judicial notice of a written agreement's contents is not the same as taking judicial notice of a particular interpretation of the agreement."] [original emphasis].)

Analysis

I. Meet and Confer

C.C.P. § 430.41 requires a meet and confer in person, by telephone, or by videoconference prior to filing a demurrer. Management One complied. (Trejo Decl., ¶ 2.) Although Creek's counsel only exchanged letters and emails with Plaintiff (Imbulamure Decl., ¶ 4), the evidence shows that the parties conferred at the hearing and continued to meet and confer on the merits of Creek's demurrer via email and letter

before submitting their supplemental briefs (Purdy Decl. II, ¶ 11). Accordingly, the Court finds that Creek substantially complied with the meet and confer requirements.

II. Merits

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.)

However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Here, the judicially noticed documents show that on December 17, 2021, Shelley and Londonn entered into a Rental Agreement with Management One to lease the Property for a term of 12 months, to continue as a month-to-month lease. (RJN, Exh. 1, Exh. 1.) Management One was listed as the landlord as an agent for the owner. (*Id.*) The tenants were listed as Shelley, Londonn, “and 1 child.” (*Id.*) Plaintiff does not dispute that she was the “1 child” named as a tenant on the Rental Agreement, and the FAC alleges that Plaintiff moved into the property in December 2021. (FAC, ¶ 2.)

On August 21, 2023, Creek filed the UD Action against Shelley, Londonn, and Does 1 to 10, who were identified as “All Unknown Occupants.” (RJN, Exh. 1, ¶ 6.c.) The UD Action sought damages, including past-due rent, as of September 1, 2023. (RJN, Exh. 1, ¶ 19.)

On October 23, 2023, Shelley, Londonn, and Ronnie W. Sudman signed the Agreement, which stated that a judgment for possession of the Property shall be lodged in favor of Creek, and that Shelley, Londonn, and all occupants shall vacate the Property by November 14, 2023. (RJN, Exh. 2 [“Agreement”].) Paragraph 13 of the Agreement (“Release”) states:

Pursuant to this Stipulation, the parties further release each other from all claims, known or unknown. Defendants have alleged there is the presence of mold within the Premises. The undersigned acknowledges that this release includes all injuries and damages to any party and/or property whatsoever, including economic injuries whether such injuries and damages were known or unknown, foreseen or unforeseen, and whether they are patent, latent or occur later, as well as personal injury damages

relating to occupancy of the Premises. Without limiting the generality of any other term or provision, the undersigned on behalf of himself, herself, or itself, and his, her, or its successors, representatives, and assigns expressly, irrevocable and specifically waives the benefit of the provisions of Section 1542 of the Civil Code of the State of California which provides:

A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party.

(Agreement, ¶ 13.)

Plaintiff's FAC asserts causes of action for negligence, breach of the implied warranty of habitability, and private nuisance based on allegations of bacteria growth, mold growth, dust mites, and fungal and biological contamination at the Property between December 2021 and July 2023. (FAC, ¶ 3-4.) Defendants assert that each of Plaintiff's claims are barred by the terms of the Release.

Release is an affirmative defense. (*Anderson v. Fitness Internat. LLC* (2016) 4 Cal.App.5th 867, 877, fn. 3.) A demurrer based on an affirmative defense will be sustained only where the face of the complaint and matters judicially noticed clearly disclose the defense or bar to recovery. (*Favila v. Katten Muchin Rosenman LLP* (2010) 188 Cal.App.4th 189, 224 [demurrer based on an affirmative defense will not lie unless it clearly appears on the face of the complaint and matters of which the court may properly take judicial notice that the cause of action is necessarily barred]; *accord, Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191 ["[a]lthough a general demurrer does not ordinarily reach affirmative defenses, it 'will lie where the complaint "has included allegations that clearly disclose some defense or bar to recovery" '"]; *see Marina Tenants Assn. v. Deauville Marina Development Co.* (1986) 181 Cal.App.3d 122, 130, 131-132 [where trial court properly took judicial notice of master lease agreement, master lease was treated "as having been pled in its entirety"]; *Helix Land Co. v. City of San Diego* (1978) 82 Cal.App.3d 932, 937 ["relevant matters of which the trial court could have taken notice" may be treated "as having been pleaded" for purposes of demurrer].) "Where the complaint's allegations or judicially noticeable facts reveal the existence of an affirmative defense, the plaintiff must 'plead around' the defense, by alleging specific facts that would avoid the apparent defense. Absent such allegations, the complaint is subject to demurrer for failure to state a cause of action." (*Esparza v. County of Los Angeles* (2014) 224 Cal.App.4th 452, 459 [internal punctuation and citations omitted].)

Here, Plaintiff argues that the Release is unenforceable as a settlement agreement under C.C.P. § 664.6 because it was signed by Management One and not by Creek. Plaintiff further contends that the Release is not valid or enforceable as a contract because there was no mutual assent, as Plaintiff was not a signatory to the Agreement, and did not consent to its terms or authorize Shelley or Landonn to execute it on her behalf.

To the extent that Plaintiff argues that Shelley and Landonn would not have executed the Agreement if they had known that it was signed by Management One rather than Creek, the Court cannot consider this argument because it relies on extrinsic evidence that is not reflected on the face of the FAC or judicially noticed documents. (*Southern Pacific Land Co. v. Westlake Farms, Inc.* (1987) 188 Cal.App.3d 807, 817 [“ ‘Because the demurrer tests the pleading alone, and not the evidence or other extrinsic matters, it lies only where the defects appear on the face of the pleading.’ [Citation.]”].)

Defendant contends that this demurrer is not an action to enforce the terms of the Agreement under C.C.P. § 664.6, and as such, Management One had authority to enter into the Agreement on its behalf. Defendant further argues that the Agreement and Release are valid and enforceable based on general contract law principles and bind Plaintiff as a third-party beneficiary.

A. C.C.P. § 664.6 Does Not Apply

The terms of a settlement agreement may be enforced in various ways. The straightforward method is via C.C.P. § 664.6, which provides a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit, which requires a written settlement agreement signed by the parties or the parties to consent before the judge. (*See Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809.)

To enforce the terms of a written settlement agreement under C.C.P. § 664.6, the agreement must be signed by the parties or their attorneys of record. (C.C.P. § 664.6(b).) In this case, the parties all concede that the Agreement was signed by Sudman, who was an employee of Management One and not Creek, the party to the UD Action. However, Defendants clarify that they are not bringing their demurrers under the summary enforcement procedure of C.C.P. § 664.6, but rather to assert an affirmative defense that Plaintiff’s claims are barred as a matter of law. In her supplemental reply, Plaintiff concedes that she “is aware that, at this point, the Defendant is not trying to enforce CCP § 664.6.” (Suppl. Reply, p. 2.)

Plaintiff then argues that the Agreement included C.C.P. § 664.6 as a material term, and as such, the statute’s requirement that the Agreement be signed by a party or party’s attorney applies. However, Defendant points out that the Agreement only mentions C.C.P. § 664.6 in paragraph 9, which states that judgment be entered under this section “but only upon a finding that Defendant has not vacated the property as agreed upon in Paragraph 2.” (Agreement, ¶ 9.) Defendant contends that Shelley and Landonn vacated the Property as agreed, and as such, § 664.6 was never triggered. (Suppl. Opp., p. 4.)

Given the above, the signature requirements of C.C.P. § 664.6 do not apply to the instant case.

B. The Release Does NOT Bar Plaintiff’s Claims

The terms of a settlement agreement that does not comply with the requirements of C.C.P. § 664.6 may nevertheless be enforced in other ways, e.g., a summary

judgment motion, a separate suit in equity, or an amendment to the pleadings. (*Levy v. Superior Court* (1995) 10 Cal.4th 578, 586, n. 5; see *Robertson v. Chen* (1996) 44 Cal.App.4th 1290, 1293 [“Section 664.6 is not the exclusive means of enforcing a settlement agreement; it is simply a summary procedure available when certain prerequisites are satisfied”].)

“A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts.” (*Weddington, supra*, 60 Cal.App.4th at 810.) The essential elements of a contract are: (1) parties capable of contracting; (2) their consent; (3) a lawful object; and (4) a sufficient cause or consideration. (C.C.P. § 1550.)

In her initial opposition, Plaintiff does not dispute that the Agreement is a valid or enforceable contract. In her supplemental reply, Plaintiff argues that the Agreement is not valid or enforceable because it was signed by Sudman, who Plaintiff contends does not possess the legal authority to bind Creek to its terms under section 664.6. (Suppl. Reply, p. 4.) Although Defendants present evidence of a Property Management Contract authorizing Management One to act as an agent and enter into the Agreement with Plaintiffs (Imbulamure Decl. II, Exh. 2, Exh. A), as noted above, the Court may not consider extrinsic evidence in ruling upon a demurrer. However, as noted above, section 664.6 does not apply to this matter. Accordingly, there is no dispute that the Agreement is a valid and enforceable contract.

The issue is whether the terms of the Agreement and Release can be enforced against Plaintiff. The parties argue at great length whether Plaintiff is a third-party beneficiary under the Agreement. However, the Court need not consider this argument, as the express terms of the Release do not bar Plaintiff’s claims of her own injuries arising from mold at the Property.

Specifically, the Release acknowledges that “Defendants have alleged there is the presence of mold within the Premises,” and further states that “[t]he undersigned acknowledges that this release includes all injuries and damages to *any party* and/or property whatsoever, including economic injuries whether such injuries and damages were known or unknown, foreseen or unforeseen, and whether they are patent, latent or occur later, as well as personal injury damages relating to occupancy of the Premises.” (Agreement, ¶ 13 [emphasis added].) Accordingly, the express terms of the Release only cover any personal injury damages to “any party” to the Agreement or UD Action.

Here, the Agreement defines “Parties” as Creek Homes LLC, Shell[e]y Flowers, and Londonn Sabree. (Agreement, p. 1.) Further, the judicially noticed documents show that only Shelley and Londonn were named as defendants in the UD Action, and only Shelley and Londonn signed the Agreement and Release. (RJN, Exhs. 1 and 2.) Although Defendants argue that Plaintiff may be considered a party because she was referenced in the underlying Rental Agreement as “1 minor child,” Plaintiff contends that the FAC alleges that she moved out of the Property in July 2023, and the UD Action was premised upon unpaid rent beginning in August 2023, when Plaintiff was no longer an occupant of the Property. Indeed, the UD Action’s Three-Day Notice states that rent was unpaid beginning August 1, 2023. (RJN, Exh. 1, Exh. 2.) Accordingly, Plaintiff cannot be considered a “party” under the Agreement or UD Action because the

allegations in the FAC and judicially noticed documents show that she was not an occupant of the Property at the time the UD Action was filed, and the Court must accept the FAC's allegations as true in evaluating a demurrer. (*Crowley, supra*, 8 Cal.4th at 672.) As such, the terms of the Release only apply to bar any claims of mold-related injuries suffered by "parties" Shelley and Landonn, and do not extend to bar any mold-related injuries suffered by Plaintiff because Plaintiff was not a party to the UD Action or Agreement.

Defendants then argue that the Release applies to bar Plaintiff's claims because the FAC alleges that Plaintiff is Shelley's daughter, and therefore an "heir" who is subject to the Release. Although the Agreement states that it is "binding upon and inure to the benefit of the parties hereto and their respective officers, directors, shareholders, owners, heirs, executors, administrators, assignees and successors in interest" (Agreement, ¶ 15), as discussed above, the terms of the Release only refer to any injuries suffered by the "parties." As such, the Agreement only bars Plaintiff from asserting claims for mold-related injuries suffered by Shelley and Landonn and does not bar Plaintiff from asserting claims for mold-related injuries that she suffered herself.

Given the above, the Court **OVERRULES** Defendants' demurrers because the terms of the Agreement and Release do not bar Plaintiff from asserting claims for mold-related injuries that she suffered from the Property.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502763	SABREE VS CREEK HOMES, LLC	DEFENDANT SUDMAN ENTERPRISES, INC. DBA MANAGEMENT ONE (ERRONEOUSLY SUED AS MANAGEMENT ONE PROPERTY MANAGEMENT) DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: See above.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2503073	GORMAN VS TROIA	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: The Court GRANTS Defendants request for judicial notice – specifically, the Court takes judicial notice of:

1. The final decision in Hearing No. 104948966, adopted by the Department on February 22, 2024, a true and correct copy of which is attached as Exhibit 1.
2. The Department's Manual of Policies and Procedures, section 30-757, effective February 5, 2007, a true and correct copy of which is attached as Exhibit 2.
3. The Department's Manual of Policies and Procedures, sections 30-701 and